

SENATE No. 2304

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act strengthening offshore wind regulations.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 2304

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 2304) of Mark C. Montigny for legislation to strengthen offshore wind regulations. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act strengthening offshore wind regulations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (d) of section 83C of chapter 169 of the acts of 2008, as
2 appearing in section 12 of chapter 188 of the acts of 2016, is hereby amended by striking out the
3 fifth clause and inserting in place thereof the following clause:-

4 (5) require that offshore wind energy generating resources to be used by a developer
5 under the proposal meet the following criteria: (i) provide enhanced electricity reliability; (ii)
6 contribute to reducing winter electricity price spikes; (iii) are cost effective to electric ratepayers
7 in the commonwealth over the term of the contract, taking into consideration potential economic
8 and environmental benefits to the ratepayers; (iv) avoid line loss and mitigate transmission costs
9 to the extent possible and ensure that transmission cost overruns, if any, are not borne by
10 ratepayers; (v) adequately demonstrate project viability in a commercially reasonable timeframe;
11 (vii) allow offshore wind energy generation resources to be paired with energy storage systems;
12 (viii) mitigate environmental impacts, marine mammal mortality, and disruptions to existing
13 commercial fishing grounds; (xi) provide a bond or other security to ensure decommissioning or

14 environmental remediation costs from mechanical failure, storm-related damage, or the end of
15 useful life will not be borne by ratepayers, the commonwealth, or its subdivisions, and (xii)
16 where feasible, create and foster employment and economic development in the commonwealth.

17 SECTION 2. The department of public utilities shall promulgate updated regulations in
18 accordance with section 1 no later than 180 days following passage of this act.